

STATE OF NEW YORK

2722--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 22, 2025

Introduced by M. of A. PAULIN, LEVENBERG, TAYLOR, ZACCARO, McDONOUGH -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring the municipal police training council establish standards for the destruction of controlled substances

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 840 of the executive law is amended by adding a new subdivision 9 to read as follows:

9. The council shall, in addition:

(a) Develop, maintain, and disseminate, in consultation with the department of environmental conservation and department of health, a minimum standards policy governing the destruction of controlled substances by law enforcement. The minimum standards policy shall include, but not be limited to, a method of destruction that will render all controlled substances to a non-retrievable state to prevent diversion and protect the public health and safety consistent with 21 CFR Part 1317, prohibited methods of destruction, record retention and management, and training.

(b) Recommend to the governor, the temporary president of the senate and the speaker of the assembly, rules and regulations with respect to the establishment and implementation on an ongoing basis of a training program for all current and new police officers regarding the policies and procedures established pursuant to this subdivision, along with recommendations for periodic retraining of police officers.

§ 2. The executive law is amended by adding a new section 837-aa to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD00856-02-6

1 § 837-aa. Disclosure of the minimum standards policy for the
2 destruction of controlled substances by law enforcement agencies. All
3 state and local law enforcement agencies shall post such minimum stand-
4 ards policy, as promulgated under subdivision nine of section eight
5 hundred forty of this article on its website, or if such law enforcement
6 agency does not maintain a website, in its main office. Such policy
7 shall be made available to the public upon request.

8 § 3. This act shall take effect one year after it shall have become a
9 law. Effective immediately, the addition, amendment and/or repeal of any
10 rule or regulation necessary for the implementation of this act on its
11 effective date are authorized to be made and completed on or before such
12 date.